

[doc. web n. 10043459]
Provision of May 23, 2024
Register of provisions
No. 326 of May 23, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the complaint filed by Ms. XX on
October 21, 2021, pursuant to Article 77 of the Regulation,
in which a violation of the rules on the protection of personal data
by the Medical Association Chirone s.c.r.l. was alleged;

HAVING REGARD to the observations made by the Secretary General
pursuant to Article 15 of the Guarantor's regulation No. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREAMBLE

1. The complaint and the initiation of the procedure.

With the complaint submitted to this Authority on
October 21, 2021, Ms. XX alleged a violation
of the rules on the protection of personal data by the Medical Association Chirone,
a limited liability cooperative (hereinafter "Cooperative"), her employer,
stating that she had come to know, in an improper manner, of information regarding her
vaccination status.

In particular, the complainant stated that she worked for the Cooperative as an employee, and that,
although she was not subject to the vaccination obligation required by
Decree Law No. 44 of April 1, 2021 (converted into Law No. 76 of May 28, 2021, in force at the time
the events occurred), she had received a
letter of warning from her employer, demanding that she proceed with the administration of the
anti-SARS-CoV-2 vaccine, under penalty of suspension
of her work activity.

With the note of December 9, 2021, the Office made a
request for information to the Cooperative, pursuant to Article 157 of the Code,
specifically aimed at ascertaining whether the procedure provided for by Article 4 of Decree Law
No. 44/2021 had been activated and, if not, to communicate the source
of acquisition of the specific data concerning the complainant.

Considering that this request, duly
notified to the Cooperative's PEC address, did not receive any response within the indicated terms,
the Office delegated the Privacy Protection and Technological Fraud Unit of the Financial Police to
proceed
with the notification of a request for information, also formulated pursuant to Article 157 of the

Code, and the act of initiation of the sanctioning procedure pursuant to Article 166 of the Code, in relation to the violation of Article 157 of the Code itself (notes of February 16, 2022).

Both acts were notified to the

Cooperative on March 10, 2022, as evidenced by the minutes of operations drawn up by the Financial Police Unit on the same date.

During the inspection, the

Cooperative stated, preliminarily, that the information regarding the vaccination status of the employee had not been acquired from the territorially competent ASL, according to the procedures provided for by Article of Decree Law No. 44/2021, but from the interested party herself, who had spontaneously expressed her intention not to undergo the anti-SARS-CoV-2 vaccination.

Regarding compliance with the procedures referred to in the aforementioned Article 4 of Decree Law No. 44/2021, it was represented that:

- "Considering the ongoing pandemic emergency, the responsibility of the undersigned, legal representative of the Cooperative, required the adoption of all measures provided by law and necessary to ensure that the physicians operating, employees, patients (...) respect the anti-Covid protocols and do not suffer any harm to health";

- "In this context, given the vaccination obligation imposed by Decree Law No. 44/2021 and subsequent amendments to all operators in the healthcare sector, including professional studios, the undersigned was concerned to understand whether the only employee of the Cooperative (...) had suitable documentation proving compliance with the obligations provided by the aforementioned decree";

- "The obligation to communicate the list of workers to be sent to the competent Local Health Authority [was fulfilled] on November 3, 2021, and considering the primacy of the protection and guarantee of health (...) action was taken promptly prioritizing the common health interest, even in the absence of a response from the ASL (...)"

For the above reasons, the Office proceeded to notify the Cooperative, on May 12, 2022, the act of initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Article 9, paragraph 2, of the Regulation, for having carried out a processing of so-called Special data, related to the complainant, in the absence of the conditions of lawfulness.

With the notes of March 18, 2022, and May 31, 2022, the party submitted its defense writings, pursuant to Article 18 of Law No. 689/1981, stating that:

- "The failure to respond [to the request for

****Information pursuant to Article 157 of the Code**** is unfortunately due to a mere material error and the modest administrative organization of the Cooperative which, in fact, did not allow the undersigned the due and timely knowledge of the same registered request";

- "to have considered that the same could be included, in this case, among the operators of health interest, performing their duties with operational functions in the waiting room, within a medical facility, such as the medical office (...), for and in the interest of the doctors (...) (members of the Cooperative) who provided their medical service there and who had requested such support from the Cooperative."

On 22/11/2022, during the hearing, pursuant to Article 18 of Law No. 689/1981, the party confirmed, on that occasion, the observations already made in the defensive writings.

****2. Evaluations regarding the acts of the procedure.****

As a result of the examination of the documentation produced and the statements made by the party during the procedure, it is noted that, unless the fact constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies information or circumstances or produces false acts or documents is liable pursuant to Article 168 of the Code, it has been established as follows.

First of all, it should be noted that the Cooperative failed to respond to the request for information made by the Authority, pursuant to Article 157 of the Code. This note was duly notified to the Cooperative's certified email address and, based on the statements made during the procedure, was not responded to within the terms solely due to issues related to internal organization.

This argument is not sufficient to exclude the responsibility of the party and to allow the archiving of the related sanctioning procedure. Among other things, the failure to respond to the aforementioned request for information made it necessary to request the involvement of the Privacy Unit of the Guardia di Finanza, tasked with notifying an additional request for information and collecting useful instructive elements.

Precisely based on the findings acquired by the aforementioned Unit, it was possible to ascertain an additional profile of illegality on the part of the Cooperative, consisting of the processing of so-called special data relating to the complainant, carried out in the absence of suitable legal grounds as per Article 9, paragraph 2 of the Regulation.

Regarding this violation, it should be clarified that the procedure related to the verification of compliance with the vaccination obligation, limited to those exercising health professions and operators of health interest, was introduced by the aforementioned Decree-Law No. 44/2021 (converted with Law No. 76 of May 28, 2021) and remained in force until November 1, 2022 (Articles 4 and 4-bis, paragraph 1 of Decree-Law 44/2021, as amended by Article 7, paragraph 1, letter b), Decree-Law October 31, 2022, No. 162, converted, with modifications, by Law December 30, 2022, No. 199).

The number of categories of workers subject to the vaccination obligation has been progressively expanded by numerous legislative interventions that have followed over time, through which the procedures related to the verification of compliance with the vaccination obligation have also been modified, both regarding the subjects responsible for the verification and concerning the timing and methods of the same (see Decree-Law November 26, 2021 No. 172, converted with modifications by Law January 21, 2022 No. 3, Decree-Law March 24, 2022 No. 24, Decree-Law October 31, 2022 No. 162).

It should also be noted that, based on the regulatory framework referred to above, vaccination against SARS-CoV-2 constituted, for certain professional categories, by express regulatory provision, "an essential requirement for the exercise of the profession and for the performance of work activities" (Article 4 of the aforementioned Decree-Law 44/2021).

The activation of the procedure initially consisted of the communication "within five days from the entry into force of the decree" by employers of a list containing the names "of the operators of health interest who carry out their activities in health, social health, social assistance, public or private structures, (...) to the region or to the autonomous province in whose territory they operate" (Article 4, paragraph 3).

Based on the documentation on file, it has, however, been found that the Cooperative made such communication (by transmitting to the territorially competent ASL the list of its employees) on 03/11/2021, as evidenced by the communication sent via certified email acquired during the investigative activity, including the name of the complainant, although she did not exercise the health profession nor was she an operator of health interest, according to the definition in the aforementioned Article 4.

Beyond this assessment, regarding the profiles related to the protection of personal data, it is

important to emphasize that, on 08/10/2021 (therefore before proceeding with the aforementioned communication to the ASL), the Cooperative had sent the complainant a letter of formal notice, in which she was ordered to present herself at the workplace “armed with documentation proving compliance with the vaccination obligation (...)” under penalty of suspension from work, which was followed by her dismissal, communicated to her on 30/11/2021.

It therefore appears, based on what has been reconstructed, that the Cooperative processed the data relating to the vaccination status of its employee, even before receiving, from the competent bodies, the act of ascertaining the non-compliance with the obligation.

vaccination, according to the procedure indicated in Article 4, paragraph 6, of Decree Law 44/2021 (“the competent local health authority verifies the non-compliance with the vaccination obligation and, after acquiring any further information from the competent authorities, immediately communicates it in writing to the interested party, the employer, and the relevant professional order”).

For this reason, the processing of data related to the claimant's vaccination status was carried out in violation of the regulations concerning the protection of personal data, which generally prohibits the processing of so-called special data (including those related to health status, Article 9, paragraph 1, of the Regulation). This prohibition is lifted only in the cases explicitly provided for in Article 9, paragraph 2, of the Regulation itself.

In particular, within the employment relationship, the derogation from the prohibition on processing so-called special data is provided for in the case of “processing necessary to fulfill obligations and exercise specific rights of the data controller or the data subject in the field of labor law and social security and social protection, insofar as it is authorized by Union or Member State law (...)” (Article 9, paragraph 2, letter b) of the Regulation).

Considering, therefore, that the provisions established by Decree Law 44/2021 constituted the basis for the lawfulness of the processing operations of so-called special data, carried out to fulfill the obligations of the data controller, the failure to comply with the procedure for verifying non-compliance with the vaccination obligation expressly provided by law has, consequently, rendered the processing carried out by the Cooperative unlawful.

Moreover, with specific reference to the processing of personal data concerning the vaccination of employees, it is noted that, in the emergency context arising from the Covid-19 epidemic, the Authority has repeatedly stated that the employer could not ask its employees to provide information about their vaccination status or copies of documents proving the completion of the Covid-19 vaccination.

And this, as mentioned, was not permitted by the specific provisions related to the health emergency nor by the regulations concerning health and safety protection in the workplace.

Furthermore, in general, it is noted that, within the employment relationship, the processing of data related to vaccination could not be considered lawful even with the consent of the employees, as consent could not constitute, in this case, a valid condition of lawfulness due to the imbalance in the relationship between the controller and the data subject in the workplace context (consideration 43 of the Regulation) (in this regard, see FAQs 1 and 2 on “Processing of data related to the Covid-19 vaccination in the workplace,” web doc no. 9543615).

3. Conclusions: unlawfulness of the processing carried out.

In light of the assessments that precede, it is therefore noted that the statements made by the data controller in the defense writings – the truthfulness of which may be subject to accountability under Article 168 of the Code – do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for its archiving, nor do any of the cases provided for in Article 11 of the Authority's Regulation no. 1/2019, concerning internal procedures of the Authority with external relevance, apply.

For the reasons stated above, the complaint submitted pursuant to Article 77 of the Regulation is declared well-founded, and, in exercising the corrective powers attributed to the Authority pursuant to Article 58, paragraph 2, of the Regulation, a monetary administrative sanction is imposed pursuant to

Article 83, paragraph 5, of the Regulation.

4. Injunction order.

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose a monetary administrative sanction provided for in Article 83, paragraph 5, of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the failure to respond to the request for information made pursuant to Article 157 of the Code and the processing of so-called special data related to the claimant, the unlawfulness of which has been established, as outlined above.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the monetary administrative sanction and its quantification, considering that the sanction must be “effective, proportionate, and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, gravity, and duration of the violation, the nature of the violation of Article 9, paragraph 2, of the Regulation concerning special data, albeit related to only one data subject, was considered significant;
- the absence of previous relevant violations committed by the data controller;
- the degree of cooperation with the Authority, particularly aimed at remedying the violations committed;
- the complexities associated with the application of the regulations in the emergency context.

It is deemed necessary to apply, in this case, the provision of Article 83, paragraph 3, of the Regulation, according to which “if, in relation to the same processing or related processing, a data controller violates, with intent or negligence, various provisions of the regulation, the total amount...” of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation.”

In consideration of the aforementioned principles of effectiveness, proportionality, and deterrence (art. 83, par. 1, of the Regulation) to which the Authority must adhere in determining the amount of the sanction, the economic conditions of the offender have been taken into account, determined based on the income declaration for the year 2022.

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to set the amount of the pecuniary sanction at €5,000.00 (five thousand) for the violation of art. 157 of the Code and art. 9, par. 2, of the Regulation.

In this context, also considering the type of violation established, which concerned the rights of the interested party, it is deemed that, pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Garante Regulation no. 1/2019, the publication of this provision on the Garante's website should proceed.

Finally, it is noted that the conditions referred to in art. 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Garante, are met.

ALL OF THE ABOVE CONSIDERED, THE GARANTE declares, pursuant to arts. 57, par. 1, lett. f) and 83 of the Regulation, the illegality of the processing carried out by the Associazione Medica Chirone Società Cooperativa, C.F. 05116550483, based in Florence, via Baracca n. 209, represented by the legal representative pro tempore, in the terms stated in the motivation, for the violation of art. 9, par. 2, of the Regulation and art. 157 of the Code;

ORDERS

the Associazione Medica Chirone Società Cooperativa, pursuant to art. 58, par. 2, lett. i), of the Regulation, to pay the sum of €5,000.00 (five thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

COMMANDS

the same to pay the sum of €5,000.00 (five thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the

consequent executive acts in accordance with art. 27 of law no. 689/1981.

It is represented that pursuant to art. 166, par. 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction within the term referred to in art. 10, par. 3, of legislative decree no. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Garante Regulation no. 1/2019, the publication of this provision on the Garante's website and considers that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

Pursuant to art. 78 of the Regulation, arts. 152 of the Code, and 10 of legislative decree 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, with an application filed at the ordinary court of the place identified in the same art. 10, within 30 days from the date of communication of this provision, or 60 days if the appellant resides abroad.

Rome, May 23, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei